

25STCV29968A 25STCV29968A

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-07-30

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TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

July 30, 2026

CASE NUMBER

25STCV29968A

MOTION

Demurrer to Complaint

MOVING PARTIES

Defendants Dignity Health, Commonspirit Health, and
Carolyn Caldwell

OPPOSING PARTY

Plaintiff Fazeel

Shah, D.O.

MOTION

Plaintiff Fazeel

Shah, D.O. ("Plaintiff") sued Defendants Dignity Health, Commonspirit Health, and Carolyn Caldwell ("Caldwell," collectively, "Defendants"), alleging employment claims. Defendants demur to Plaintiff's complaint. Plaintiff opposes the demurrer.

ANALYSIS

"It is black

letter law that a demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) In ruling on a demurrer, the court must "liberally construe[]" the allegations of the complaint. (Code Civ. Proc., § 452.) "This rule of liberal construction means that the reviewing court draws inferences favorable to the plaintiff, not the defendant." (Perez v. Golden Empire Transit Dist. (2012) 209 Cal.App.4th 1228, 1238.)

Defendants argue

they cannot be liable for employment claims because Defendants could not employ Plaintiff as a matter of law. Pursuant to the prohibition on the corporate practice of medicine, California law generally bans hospitals from practicing medicine by employing physicians. Instead, hospitals must engage physicians as independent contractors. (Conrad v. Medical Board of California (1996) 48 Cal.App.4th 1038, 1049.) However, there are several exceptions to this rule, as set forth in Business and Professions Code section 2401. Defendants address none of these exceptions in their demurrer, and the Court cannot reach the factual issue of whether any exception applies on demurrer.

However, even if

the Court assumes Defendants employed Plaintiff, "joint employers are not vicariously liable for each other's . . . violations, but liable for their own conduct." (Grande v. Eisenhower Medical Center (2020) 44 Cal.App.5th 1147, 1160.) In the instant case, Plaintiff alleges Defendant SoCal Hospitalists terminated Plaintiff's employment and the Medical Executive Committee investigated Plaintiff. (Complaint, ¶ 12(h), (j).) Plaintiff does not allege any unlawful behavior by Defendants. Defendants are

not vicariously liable for any violations by SoCal Hospitalists. Furthermore, “[t]he medical staff is a separate legal entity from the hospital itself.” (Natarajan v. Dignity Health (2021) 11 Cal.5th 1095, 1114.)

Accordingly,

Plaintiff must amend the complaint to sufficiently allege the employment-related claims asserted against these Defendants.

Sixth Cause of Action: Intentional
Interference With Prospective Economic Advantage

This cause of
action is asserted against Caldwell.

To prevail on a cause of action for
intentional interference with prospective economic relations, Plaintiff must
show an economic relationship exists between Plaintiff and a third party with
the probability of future economic benefit to Plaintiff, Caldwell’s knowledge
of the relationship, Caldwell’s intentional acts to disrupt the relationship which
result in actual disruption of the relationship, and resulting harm to Plaintiff.
(Salma v. Capon (2008) 161
Cal.App.4th 1275, 1290.)

In the instant case, Plaintiff alleges Caldwell
interfered with Plaintiff’s existing economic relationship with St. Mary
Medical Center. (Complaint, ¶ 83.) However, to the extent Plaintiff alleges both
Plaintiff and Caldwell worked for St. Mary Medical Center. (See Complaint, ¶ 12(a), (b).) As such, Plaintiff does not allege
Caldwell
interrupted Plaintiff’s economic relationship with a third party. The tort of intentional interference with
prospective economic advantage is “inapplicable to a[n] employee.” (Shoemaker v. Myers (1990) 52 Cal.3d
1, 24.)

Plaintiff must
amend the cause of action.

Seventh Cause of Action: Intentional
Infliction of Emotional Distress

This claim is also
asserted against Caldwell. “The elements

of the tort of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community. The defendant must have engaged in conduct intended to inflict injury or engaged in with the realization that injury will result." (Potter v. Firestone Tire & Rubber Co. (1993) 6 Cal.4th 965, 1001, internal quotations and citations omitted.)

Plaintiff alleges Caldwell

failed to investigate his claims concerning improper conduct. (Complaint, ¶ 12(g).) "A simple pleading of personnel management activity is insufficient to support a claim of intentional infliction of emotional distress, even if improper motivation is alleged. If personnel management decisions are improperly motivated, the remedy is a suit against the employer for discrimination." (Janken v. GM Hughes Electronics (1996) 46 Cal.App.4th 55, 80.)

Accordingly,

Plaintiff must amend.

CONCLUSION AND ORDER

Defendants'

demurrer to all causes of action asserted against them by Plaintiff is sustained with leave to amend. Plaintiff is to file an amended complaint within 20 days of notice of this order.

Defendants are ordered to provide notice of the Court's ruling and to file proof of service of same.